

26NWCP00255 26NWCP00255

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-13

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Case Number: 26NWCP00255 Hearing Date: August 13, 2026 Dept: P

STATE BAR OF

CALIFORNIA v. ALMAREZ, ET AL.

CASE NO.: 26NWCP00255

HEARING: 08/13/2026 @ 9:30 AM

#11

TENTATIVE ORDER

State Bar of California's verified petition for assumption of jurisdiction over John Pamintuan Alamarez Jr. is GRANTED.

Moving party to give notice.

This OSC Re: why the Court should not assume jurisdiction over Respondent's practice is made pursuant to the Court's ruling on July 7, 2026.

Background

On June 23, 2026, State Bar of California (State Bar) filed a verified petition (Petition) for assumption of jurisdiction over the unauthorized law practice of John Pamintuan Alamarez Jr. aka John P. Alamarez, John Alamarez, Domingo P. Alamarez, Domingo P. Alamarez Jr. dba Immigration Law Services, and Immigration Services Law Office (Respondent) and an injunction. On July 7, 2026, the Court granted State Bar's ex parte application to set an OSC

Re: why the Court should not assume jurisdiction over Respondent's practice.
The Court also granted interim orders for assumption of jurisdiction. (Order, 7/7/26.)

On July 10, 2026, State Bar filed Proofs of Service reflecting service of the Petition, ex parte application and related filing, and order granting the ex parte application upon Respondent via personal service and mail.

Legal Standard

Business and Professions Code section 6125 provides that “[n]o person shall practice law in California unless the person is an active licensee of the State Bar.” “Any person advertising or holding himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor.” (Bus. & Prof. Code, § 6126, subd. (a).)

Business and Professions Code section 6126.3, subdivision (b) provides that: “The State Bar...may make application to the superior court...for assumption by the court of jurisdiction over the practice... the State Bar shall be permitted to intervene and to assume primary responsibility for conducting the action.” The application “shall be verified, and shall state facts showing all of the following:

(1) Probable cause to believe that the facts set forth in subdivision (a) of Section 6126 have occurred.

(2) The interest of the applicant.

(3) Probable cause to believe that the interests of a client or of an interested person or entity will be prejudiced if the proceeding is not maintained.” (Bus. & Prof. Code, § 6126.3, subd. (c).)

“The application shall be set for hearing, and an order to show cause shall be issued directing the person to show cause why the court should not assume jurisdiction over the practice as provided in this section.”

(Bus. & Prof. Code, § 6126.3, subd. (d).)

"If the court finds that the facts set forth in subdivision

(a) of Section 6126 have occurred and that the interests of a client or an interested person or entity will be prejudiced if the proceeding provided herein is not maintained, the court may make an order assuming jurisdiction over the person's practice pursuant to this section. If the person to whom the order to show cause is directed does not appear, the court may make its order upon the verified application or upon such proof as it may require." (Bus. & Prof. Code, § 6126.3, subd. (e).)

Discussion

State Bar petitioners for an order of assumption of jurisdiction over Respondent based on his unauthorized practice of law. This Petition is unopposed.

State Bar puts forth the declaration of Colie Dillon, the lead investigator for State Bar (Investigator Dillon), assigned to the complaint filed by Attorney Tajsha Thomas (Attorney Thomas) against Respondent. (Dillon Decl., ¶¶ 2-3.) Attorney Thomas's complaint alleged that Attorney Thomas's father passed away on September 25, 2024, and he left behind The Thomas Firm which is located at the same address that Respondent's business is located now. (Dillon Decl., Exh. 1.) The complaint alleges Respondent induced Attorney Thomas to return to the firm, and once Attorney Thomas returned, she saw that Respondent was engaged in the unauthorized practice of law and his true intent in urging her to join the firm was so he could use her law license in carrying out his conduct. (Dillon Decl., Exh. 1.) Attorney Thomas alleged that she personally witnessed Respondent holding himself out as an attorney to clients and court clerks, providing legal advice, and collecting attorney's fees. (Dillon Decl., Exh. 1.)

Investigator Dillon recounts his investigation of the complaint. Investigator Dillon searched the State Bar database of licensed California attorneys and found no licensed attorneys with Respondent's name or aliases. (Dillon Decl., ¶ 25.) Investigator Dillon reviewed letters prepared by Respondent on letterhead stating "Divina Law Office" with a photo of Respondent listing him as "John P. Alamarez, JD Law Administrator" of the "Divina Law Office Immigration Law" located at "17127 Pioneer Blvd Suite E-1, Aliesia CA 90701" with the telephone number (562)

278-2475. (Emphasis in original.) The card also listed "Attorney Marianne B. Divina, ESQ Attorney-At-Law." (Dillon Decl., ¶ 6.) Investigator Dillon learned from Attorney Divina that she never authorized Respondent using her name and that she had previously employed and terminated Respondent. (Dillon Decl., ¶ 8.) Additionally, Investigator Dillon learned that the letter obtained by Investigator Dillon, which showed Respondent representing that his client was Allgelita Vinluan Labit and requesting the status on a survivor benefit claim that he had previously submitted her behalf, evidenced the unauthorized practice of law because Labit was never Respondent or Attorney Divina's client, but rather, a client of the deceased lawyer Jack Richard Thomas. (Dillon Decl., ¶ 6.)

On May 8, 2026, Investigator Dillon was informed that Respondent may be associated with an out-of-state attorney Marlon Wijesekara (Attorney Wijesekara), licensed in New York and Washington D.C. (Dillon Decl., ¶¶ 10-11.) Investigator Dillon communicated with Attorney Wijesekara and learned that Respondent was using Attorney Wijesekara's name without his consent and that he had never employed Respondent at any capacity. (Dillon Decl., Exh. 12.) Attorney Wijesekara told Respondent to remove all signage and to refrain from using his name. (Dillon Decl., Exh. 12.)

Investigator Dillon also discussed his investigation of the premises of Respondent's business address. In June of 2026, a Google Maps search of the business showed signage stating "IMMIGRATION LAW THOMAS LAW OFFICE." (Dillon Decl., ¶ 17, Exh. 13.) Investigator Dillon received photographs of the business taken on April 15, 2026, showing the same signage with the name "THOMAS" substituted with the name "Wijesekara." (Dillon Decl., Exh. 14.) In June of 2026, Investigator Sandra Hernandez and counsel Kyuhee Han conducted exterior-only site visits of the business address and confirmed that Respondent's office is open, operating, and advertising immigration services to the public. (Hernandez Decl., ¶ 5; Han Decl., ¶ 5.)

Based on the foregoing, the Court finds that State Bar establishes that Respondent engaged in the unauthorized practice of law. The practice of law "includes legal advice and counsel, and the preparation of legal instruments and contracts by which legal rights are secured, although such matter may or may not be pending in a court." (State Bar of California v. Superior Court (1929) 207 Cal. 323, 335.) " 'The cases uniformly hold that the character of the act, and not the place where it is performed, is the decisive element, and if the application of legal knowledge and technique is

required, the activity constitutes the practice of law.” (Benninghoff v. Superior Court (2006) 136 Cal.App.4th 61, 68.)

Here, State Bar shows that Respondent advertised himself as providing legal services and actually provided legal services to the public in California. Respondent conducted client consultations, communicated with parties on behalf of clients, and charged legal fees. The Court therefore finds probable cause to believe that Respondent advertised and held himself out as practicing law and provided immigration legal services. (Bus. & Prof. Code, § 6126, subd. (a).)

The Court further finds that the State Bar has an interest in protecting the public from the unauthorized practice of law. (Bus. & Prof. Code, § 6126.3, subd.) State Bar shows that the interests of the clients and the administration of justice will be prejudiced if this proceeding is not maintained as Respondent has misrepresented himself as qualified to provide legal services or attempted to align himself with the work of attorneys without the consent or knowledge of those attorneys. “Two public policies underlie the strictures against the unlicensed practice of law. First, attorneys must be licensed so that the public is protected from being advised and represented by persons who are not qualified to practice law. [Citation.] Second, the litigation of cases by unlicensed attorneys threatens the integrity of the judicial process itself.” (Russell v. Dopp (1995) 36 Cal.App.4th 765, 773.) The Court finds that State Bar establishes that the public remains at risk of being victimized by Respondent if this action is not taken to cease the unauthorized practice of law.

Accordingly, State Bar’s petition is GRANTED. The Court will sign the Proposed Permanent Order for State Bar to assume jurisdiction over Respondent’s unauthorized practice of law with the orders necessary to assume jurisdiction as provided in the Proposed Order. (Bus. & Prof. Code, § 6126.3, subd. (e).)